

24NWCV01195 24NWCV01195

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Case Number: 24NWCV01195 Hearing Date: June 23, 2026 Dept: C

RAMIREZ vs AMERICAN HONDA MOTOR

CO., INC.

CASE NO.: 24NWCV01195

HEARING: 6/23/26

at 9:30AM

#14

TENTATIVE

RULING

Plaintiff Clemente

Ramirez's Motion for Attorney's fees is GRANTED in part. Plaintiff is entitled to recover \$52,512.50 in attorney's fees and \$11,803.04 in costs.

Moving Party to give

NOTICE.

Plaintiff Clemente Ramirez (Plaintiff)

moves this Court for an award of attorney's fees pursuant to Civil Code § 1794(d).

Background

This

is a lemon law action. On April 16, 2024, Plaintiff sued defendant AMERICAN HONDA MOTOR CO., INC. (Defendant). On March 4, 2026, the parties resolved this case. (Daghighian Decl., ¶ 50.) Pursuant to the settlement agreement, Defendant agreed that Plaintiff was the prevailing party and entitled to attorney's fees, costs, and expenses pursuant to the Song-Beverly Act. (Ibid.)

LEGAL STANDARD

A prevailing party

is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (a)(4), (b).) Attorney's fees are recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court . . . must be served and filed within the time for filing a notice of appeal under . . . rules 8.822 and 8.823 in a limited civil case." (Cal. Rules of Court, rule 3.1702, subd. (b)(1).) In a limited civil case, a notice of appeal must be filed on or before the earliest of 30 days after service of a document entitled "Notice of Entry" of judgment or 90 days after the entry of judgment. (Cal. Rules of Court, rule 8.822, subd. (a)(1).)

The fee

setting inquiry in California begins with the “lodestar” method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award. The lodestar figure may then be adjusted, based on factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id., at p. 48, fn. 23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-1096.)

Discussion

As

the prevailing party in this action and pursuant to the Song-Beverly Act and the parties’ settlement agreement, Plaintiff is entitled to attorney’s fees and

costs pursuant to CCP § 1032(a)(4) and CCP § 1794(d). However, under the Song-Beverly Act provision that governs award of attorney's fees, if the time expended or the charge for time expended is unreasonable, then the trial court must take that into account and award attorney's fees in a lesser amount. (McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 703.)

I.

Attorney's Fees

Plaintiff's Motion is timely and it is undisputed that Plaintiff is the prevailing party. Plaintiff seeks \$60,700.00 in attorney's fees and \$30,350.00 under the lodestar multiplier/ enhancement of 0.5x for contingent risk and delay and \$11,803.04 in costs pursuant to CCP § 1794(d). The total amount requested in fees, costs and expenses is \$102,853.04.

Attorney Sepehr Daghighian has provided a declaration setting forth his background and hourly billing rate, as well as an attached exhibit with an itemized description of the time spent and tasks undertaken in relation to this action and the instant motion for attorney's fees and costs.

(Daghighian Decl., ¶ 12; Exh. A.)

According to Daghighian, his firm spent a total of 205.5 hours in connection with this action.

Counsel's fees and experience are summarized as follows:

Name

Position

Bar Passage Year

Hourly Rate

Sepehr Daghighian

Partner

2005

\$625.00

Jim Martinez

Associate Attorney

2012

\$400.00

Brian Murray

Senior Associate

2012

\$550.00

Miguel Ortiz

Associate Attorney

2006

\$525.00

Michael Rosenstein

Partner

1993

\$700.00

(Daghighian Decl., ¶ 12; Exh. A.)

A.

Attorney Billing Rate

The Court finds the billing rate for

the attorneys at California Consumer Attorneys, P.C. are reasonable based on

their experience, practice area, and location. (See *Save Our Uniquely*

Rural Community Environment v. County of San Bernardino (2015) 235

Cal.App.4th 1179 [a reasonable hourly rate used for the lodestar

calculation of attorney's fees is that prevailing in the community for similar

work.]) Based on counsel's declarations and the Court's own experience with the

billing rates of Los Angeles-area counsel in similar lemon law cases, the Court

finds Plaintiff's counsel's and paralegal's rates are reasonable.

B.

Hours Reasonably Spent

The Court may adjust the award for excessive or

unreasonable billing. (PLCM

Group v. Drexler (2000) 22 Cal.4th 1084, 1095-1096.) The Court agrees with Defendant that certain entries are excessive including for preparing routine discovery requests and responses, duplicative work, and an excess of time spent for the underlying motion, as well as anticipated time for the opposition and hearing attendance for this underlying motion.

Excessive Billing:

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Defendant

argues that Plaintiff's counsel's following entries are duplicative: on October 18, 2024, Martinez billed 3.5 hours (\$1,400.00) to review Defendant's initial discovery responses. (See Ex. A to Daghighian Declaration, p. 2.) Then, on October 24, 2025, Daghighian re-reviewed Defendant's discovery responses for 3.40 hours (\$2,125.00). (Ibid. at p. 4.) The Court finds the review not duplicative. Defendant's counsel omits that the additional review of discovery responses was in preparation for trial, while the initial review does not have the notation. The alleged duplicative entry is as follows: "Sepehr Daghighian: Trial Preparation: Review Parties' Discovery Responses; Review Third-Party Responses to Subpoenas; Compile and Organize Trial Exhibits; Draft Joint Trial Exhibit List." Therefore, the Court shall make no reduction.

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On

January 13, 2026, Ortiz billed 2.30 hours (\$1,207.50) to review Defendant's responses to Requests for Production (Set Two) and prepare a "detailed meet and confer letter". (Id.) Then on January 26, 2026, Ortiz billed another 1.90 hours (\$997.50) to "receive and review" AHM's responses to Requests for Production (Set Two) and "draft Meet and Confer letter". (Ibid. at p.

5.) The Court finds these entries duplicative. Therefore, the Court shall reduce Ortiz's 4.2 hours (\$2,205.00) spent to review Defendant's responses to Request for Production (Set Two) by 2 hours at \$525 for a total reduction of \$1,050.

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On

January 26, 2026, Murray billed 3.5 hours (for \$1,925.00) to prepare joint trial documents. (Id.) However, Daghighian had already billed 6.0 hours (for \$3,750.00) to prepare the same joint trial documents on October 24 and 25, 2025. (Ibid. at p. 4.) The Court shall reduce Murray and Daghighian's combined 9.5 hours (\$5,675.00) to prepare and re-prepare the same trial documents by 4 hours at the rate of \$625.00/hour for a total reduction of \$2,500.00.

Templated Work Product:

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Defendant

argues that Plaintiff's counsel billed an excessive amount of time for certain templated documents. On August 20, 2024, Plaintiff's counsel claims to have spent 3.5 hours (for a claimed fee of \$1,400.00) to prepare the same boilerplate Form Interrogatories, Special Interrogatories, Requests for Admissions, and Requests for Production served in other cases. (Daghighian Decl., Ex. A, p. 2; Miner Decl. Ex. 1.) For example, on August 26, 2024, Plaintiff's counsel served Special Interrogatories (Set One) [see Ex. 2 to Miner Decl.] on Ford Motor Company and on January 29, 2025, Plaintiff's counsel served Special Interrogatories (Set One) [see Ex. 3 to Miner Decl.] on American Honda Motor Co., Inc. in another lemon law case. Notably, Plaintiff's counsel's Special Interrogatories in other cases as well as this case, Exhibits 1, 2, and 3 to the Miner Declaration, follow the same pattern. Special Interrogatory Nos. 1 through 31 are identical. (See Miner Decl., Exs. 1-3.) Then, beginning with Special Interrogatory No. 32, the interrogatories follow the same pattern where only the type of concern is changed depending on the case. (Id.) The Court finds the time excessive and shall reduce the time spent by 1.75 hours at a rate of \$400, for a total reduction of \$700.

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Defendant

argues Plaintiff's counsel additionally billed an excessive of time in drafting

templated motions in limine. In this regard, on January 22, 2026, Martinez billed 3.80 hours at the rate of \$400 per hour for a total of \$1520. Plaintiff's counsel filed the same Motions in Limine, but for the type of vehicle, dates, and claimed problems, in Krystal Hedrick v. American Honda Motor Co., Inc., Los Angeles County Superior Court Case No. 24VECV02063 (Compare Miner Decl.Exs. 4 and 5.) The Court finds that there was an excess of time billed for nearly identical templated work therefore the Court shall reduce the entry by 2 hours at a rate of \$400 for a total reduction of \$800.

Attorney's Fees Motion:

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Plaintiff's

counsel billed 5.2 hours for a total of \$3,250.50 for the underlying fee motion on April 24, 2026, not including 7.50 hours at a rate of \$625 in anticipated time for reviewing Defendant's opposition, drafting a reply and attending the hearing. (Daghighian Decl., Exh. A.) Plaintiff is entitled to include the time spent preparing the underlying motion in the ultimate fee award. (See McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 703, citing Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133) ["The fees incurred in preparing a motion for fees are properly includable in the award."]) However, here, counsel has billed an unreasonable amount of time in drafting the underlying motion, reviewing of

the opposition, drafting a reply, and attending the hearing for a routine motion. The Court will therefore strike a total of 6.7 hours at the \$625 rate for a total reduction of \$4,187.50.

Accordingly,

the Court ultimately finds Plaintiff is entitled to \$52,512.50

in attorney's fees.

C.

Costs

The Court finds that Plaintiff's

counsel's request for costs in the amount of \$11,803.04 is reasonable. Plaintiff asserts that costs include standard litigation and trial expenses such as filing fees and court reporter fees. Evidence of the costs was provided in an invoice and attested to by Plaintiff's counsel, Sepehr Daghighian. (See, Daghighian Decl., ¶ 12, Exh. A). These are typical and routinely approved in lemon law actions under Civil Code §1794(d).

I.

Lodestar

Multiplier

In determining an attorney's fees award under the lodestar

adjustment method, the trial court is neither foreclosed from, nor required to,

award a multiplier. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48

Cal.App.5th 240.) Once the touchstone or lodestar figure (reasonable hours multiplied by reasonable rates) is calculated as “the basic fee,” “it may be adjusted by the court [by applying a multiplier] based on factors including ..., (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Plaintiff seeks a multiplier

for risk and delay given that this lemon law action was taken on a contingency basis. The Court rejects the multiplier request. This lemon law action is not complex as it involved neither novel nor difficult legal issues. The purpose of the multiplier adjustment is to fix a fee at the fair market value for the particular action. Accordingly, applying a multiplier would contravene its purpose. Plaintiff’s request for a lodestar multiplier is DENIED.

Accordingly, the motion is

GRANTED in part. Plaintiffs are entitled to recover \$30,428 in attorney's fees and \$11,803.04 in costs.